GUIDE · CORE PLANNING

The cornerstones of *estate planning.*

A plan is not merely a record of how your assets pass. It is part of a larger financial conversation — built to carry your wishes, your values, and the people you love through whatever comes next.

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Most Florida families need the same handful of instruments — quiet on their own, formidable together. This overview walks through the six documents at the heart of a complete plan, the tax structures worth knowing about, and the questions clients ask us most.

The six cornerstone documents

1 · The Revocable Living Trust

A living trust is a flexible arrangement that holds title to your assets during your lifetime. You stay in full control as trustee; the trust simply owns the property on your behalf. Because the trust — not you personally — holds title, those assets pass to your beneficiaries on your death without Florida probate, sparing your family its delay, cost, and public record.

> *A trust is not an instrument of secrecy. It is an instrument of efficiency — and privacy.*

2 · The Family Protection Subtrust

A “trust within the trust” that takes effect after your death. Instead of handing assets to your beneficiaries outright — exposed to their creditors, divorces, and lawsuits — the subtrust holds and manages those assets, distributing them on the standard you set and shielding the principal from forces no one can predict.

3 · The Last Will & Testament

In a funded trust plan the will works mainly as a *pour-over will*: a safety net that catches anything not titled in the trust and directs it inside. It also does what a trust cannot — most importantly, it is where you nominate the guardian for your minor children. Without a will, a Florida court decides who raises them.

A COMMON MISCONCEPTION

“I have a will, so I don’t need a trust.” A will alone still passes through probate. For Florida residents with real property, a funded trust is almost always the more sensible foundation, with the will as backup.

4 · General Durable Power of Attorney

Grants someone you trust the authority to manage your financial affairs if you are incapacitated. “Durable” is the operative word — it keeps working precisely when it is most needed, letting your agent pay bills, manage investments, file taxes, and handle real estate when you cannot.

5 · Healthcare Directives

An **Advance Directive (Living Will)** records your wishes for life-sustaining treatment and end-of-life care, relieving your family of the hardest conversation. A **Healthcare Surrogate Designation** names the person who applies those wishes to the facts of the moment, alongside your physicians.

6 · HIPAA Authorization

Federal privacy law restricts who may receive your medical information. A HIPAA authorization names the people — usually your spouse, agent, and surrogate — permitted to receive it, so those helping you are not stopped at the hospital’s privacy desk.

Tax planning considerations

A/B (credit-shelter) planning. For married couples with larger estates, separate trusts can let each spouse use their individual estate-tax exemption, passing more wealth to the next generation tax-efficiently.

Irrevocable trusts with lifetime protection. For higher-net-worth families concerned about federal or state estate tax, an irrevocable trust can offer estate-tax reduction, lifetime gifting, and protection from creditors and divorce — in exchange for less day-to-day flexibility. These are long-horizon decisions that reward careful counsel.

Common questions

What is probate, and why avoid it?

Probate is the court process that validates a will, appoints an executor, settles debts, and distributes what remains. It tends to be slow, costly, and public — and the court, not your family, controls the pace. A funded revocable trust lets most assets bypass it entirely.

How often should I update my plan?

Review after any major life event — marriage, divorce, a new child, a move, a death in the family. Absent those, a look every three to five years keeps the plan aligned with your intentions.

Whose guidance should I seek?

Estate planning is the ultimate financial-planning exercise. At minimum your team should include an experienced attorney; where you work with a financial advisor, including them in the conversation produces a more coherent strategy.

PUTTING IT TOGETHER

A complete Florida plan typically includes all six documents, drafted to work as one coherent instrument of your wishes. PEP designs, drafts, and executes the full set under a single flat fee.

SCHEDULE A CONSULTATION

The conversation begins with a *thirty-minute call.*

Complimentary and confidential. We discuss your circumstances, outline a path forward, and quote a single flat fee in writing — before any work begins.

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